

**FACULTY OF LAW
WESTERN UNIVERSITY
FINAL EXAMINATION**

Constitutional Law 5110 003

DATE: Friday, April 20, 2018
TIME: 1:00 p.m. – 4:00 p.m.
LOCATION: Room 38
EXAMINER: Professor Kate Glover

This exam consists of 6 pages (including this page). Please check that you have all of the pages, and alert the proctor immediately if you do not.

Instructions:

1. This exam is limited open book. Permitted in the exam room: the required textbook for the course; and your own notes. NOT permitted: any books other than the required textbook; photocopies of books other than the required textbook; commercial summaries; and lecture recordings.
2. The total time for the examination is three (3) hours. **It is marked out of 60 marks.** It consists of two parts, each with multiple questions. The value and approximate writing time of each question are indicated.
3. The exam is worth 60% of your final grade, or 45% if you completed the optional assignment.
4. If you are writing by hand, please write legibly on every other line and on one side of the page only. Write the course name, instructor's name, today's date and your 4-digit exam number on the cover of each booklet that you use. Do **not** put your name or student number on your exam; use only your 4-digit exam number to identify your work. Number all of the exam booklets that you used (i.e. 1 of 2, 2 of 2, etc.) and return any unused booklets.
5. Use only your 4-digit exam number and **not** your name or student number. Do not identify yourself in your answers or on your exam booklets in any other way. **Write your 4-digit number at the top of this question paper** and HAND IT IN before you leave the room at the end of the exam.
6. You are not permitted to leave the exam room during the last 10 minutes of the exam.
7. You must stop writing at the designated time. A notation will be made on your question paper if you fail to do so and will be taken into consideration when grading your exam.
8. If writing by computer, you are responsible for ensuring that your exam has been uploaded (green confirmation screen) BEFORE you leave the examination room. After a successful exam submission, you will receive a confirmation email from ExamSoft; we recommend that you save this email until after final grades have been posted. You can also log into your account at <http://examsoft.com/westernulaw> to see the exams for which you have submitted answers.

**GOOD LUCK!
STOP! DO NOT READ THE NEXT PAGE
UNTIL INSTRUCTED TO DO SO**

PART I: HYPOTHETICAL FACT PATTERN
(48 marks; suggested time 2 hours 24 minutes)

Consider the following facts:

The government of Ontario has never run its own daycare facilities. Rather, all daycare has been provided by private individuals and organizations, just like any other business in the province. However, all daycare facilities in Ontario that care for 5 or more children over the age of 2 must have a license, issued by the Minister of Education, to operate lawfully. To receive a license, the daycare must meet the province's health, safety, and caregiver training requirements.

In 2017, the Ontario government conducted extensive research into barriers to equality for people who identify as female and minorities in the province. The Committee conducting this research discovered that, for these communities, a major barrier to entry into the workforce, as well as retention and advancement in the workforce, was affordable, accessible daycare. In light of this research, in January 2018, the provincial government of Ontario announced a new child care initiative called the Free Daycare Initiative. Under this Initiative, every child in Ontario between the ages of 2 and 5 would be guaranteed a free spot in a licensed daycare facility. The new initiative was set out in the *Free Daycare Act*, which came into force on March 1, 2018. The Preamble and relevant sections of the *Free Daycare Act* provide as follows:

Whereas Ontario seeks to promote equality in all sectors across the province;

And whereas a major barrier to equality is the lack of affordable and accessible daycare;

And whereas childcare is a necessary public service;

And whereas high quality daycare services can be guided by a diverse set of values, traditions, beliefs, and perspectives;

And whereas the Province of Ontario is not in the best position to establish new, government-run daycare facilities;

Therefore, Her Majesty, with the advice and consent of the Legislative Assembly of the Province of Ontario enacts the Free Daycare Act.

1. The Government of Ontario establishes the Free Daycare Initiative.
2. Under the Free Daycare Initiative, every child in Ontario between the ages of 2 to 5, inclusive, is guaranteed free access to licensed daycare within 10 kilometers of their home or within 10 kilometers of their parent's employer.
3. The Government of Ontario will reimburse a daycare facility that participates in the Free Daycare Initiative according to the formula set out in Schedule A to this *Act*.
4. To be eligible to participate in the Free Daycare Initiative, a daycare provider must:

- a. Maintain its license under the existing daycare licensing regime, including meeting all training requirements for health, safety, and caregiving, as prescribed by the Ministry of Education and Ministry of Health and Safety in the province;
- b. Provide annual records of their spending practices to the Minister of Education for review;
- c. Implement all directives regarding the delivery of childcare services in the Free Daycare Initiative, as issued from time to time by the Minister of Education or the Minister of Health and Safety;
- d. Provide daycare services of the highest quality to all children in the Free Daycare Initiative;
- e. Submit an annual report to the Minister of Education that sets out the mandate and curriculum of the daycare centre, as established by the centre;
- f. Submit an annual report to the Minister of Education that assesses the extent to which the curriculum of the daycare centre is consistent with the values set out in the public school curriculum established by the Ministry of Education; and
- g. Amend its corporate by-laws to allow for at least one member of the Board of Directors of the daycare to be appointed by the Minister of Education.

On April 2, 2018, the government released a list of existing daycare facilities that would be participating in the Free Daycare Initiative. The Jessica Jones Preschool Centre (“the JJP Centre”) was on the list. The JJP Centre has a long-standing reputation as the best daycare facility in the province. Every child who has attended the JJP Centre has gone on to graduate from university. Many of its graduates have contributed a great deal to society and its alumni include multiple teachers, judges, Prime Ministers, astronauts, physicians, social justice advocates, and scholars.

The JJP Centre has existed in Ontario since 1895. The JJP Centre is incorporated under Ontario’s *Business Corporations Act* and is governed by a Board of Directors. The corporate by-laws of the Centre provide that the Board is comprised of the Director of the JJP Centre, the Deputy Director of the JJP Centre, the Lead Teacher of the JJP Centre, seven parents of children who attend the JJP Centre, the pastor or deputy pastor of St. Mary’s Church, and one councilor from the London City Council.

When it first started, the JJP Centre was a preschool for Christian children. Children from Christian families were given preference in enrolment in the school and the curriculum was taught from a Christian perspective. Much of the Christian teachings have now been removed from the curriculum of the JJP Centre, but the Centre’s mission statement continues to say: “The mission of the JJP Centre is to provide the best early childhood education possible to the children of Ontario, as inspired by the traditions and values of the Christian religious faith, including love, tolerance, and charity.” Further, the “About Us” section of the JJP’s Centre’s website provides that: “The crucifix displayed in the Offred Room of the JJP Centre has been mounted in the same location since 1895. It reminds us all on a daily basis of the Christian traditions and values that have inspired the mission of the Centre for more than a century.”

The Offred Room is the Centre’s playroom for children ages 2 to 5. The children play in this room every day and eat their snacks and meals there. Before each snack and meal, the children are asked

to face the crucifix and bow their heads, while the daycare leader says: “Bless the food we are about to eat.” This practice of acknowledging the crucifix at eating time and blessing the food has been a tradition at the JJP Centre since 1895. When the JJP Centre was designated as a daycare centre in the Free Daycare Initiative, the Centre’s Board of Directors wanted to ensure that they continued to provide the high quality education for which they are known, including continued respect for their core values or historical traditions. At the same time, they wanted to affirm the many religious traditions and beliefs about God that the students in the Free Daycare Initiative may hold. Accordingly, the Board issued a new “Food Policy” that included the following:

Historically, as is consistent with Christian beliefs and practices, meals at the JJP Centre were preceded by acknowledging the crucifix in the Offred Room and saying “God bless the food we are about to eat.” This tradition will continue at the JJP Centre, given its historical roots and its reflection of the principles of charity and living a good life. However, going forward, the class leader will omit reference to God and simply say, “Bless the food we are about to eat.” Further, students are entitled to cover their ears during the blessing, if they prefer.

Blair VanderWoodsen and her wife, Christina Grey, live in London, ON, close to the JJP Centre, with their four-year old daughter, Veronica Neptune VanderWoodsen-Grey. Blair is Jewish and Christina is an atheist. They are raising Veronica in the Jewish faith and intend to let her choose between her parents’ differing sets of beliefs when she is twelve.

Neither Blair nor Christina had the opportunity to go to university given their family circumstances growing up. They desperately want Veronica to have access to the best education and to attend university when she is older. They have saved scrupulously to be able to move to London so that they could access a free daycare spot at the JJP Centre. In April 2018, their hard work and saving paid off, as they were allocated a free daycare spot at the JJP Centre as part of the Free Daycare Initiative. Veronica has now attended the JJP Centre for 10 days and has made good friends. Blair and Christina have already noticed that Veronica’s language and social skills have improved since enrolling at the JJP Centre.

Blair has told Veronica that she can cover her ears during the blessing. However, Veronica has told her mother that only two other children in her class of twenty do so. Veronica says that many children point and laugh at these two children during the blessing and sometimes those two children eat their snacks alone. Each time Blair and Christina try to talk to Veronica about the crucifix and what to do during the blessing, Veronica cries. Veronica says she is confused by the crucifix because a cross is not a meaningful symbol of God for her. She feels strange bowing her head while facing the crucifix, but also does not want her classmates to think she is weird. She has asked her mothers whether her beliefs are wrong.

Despite being happy about the education her daughter is receiving at the JJP Centre, Blair is troubled by the Centre’s practice of displaying the crucifix and acknowledging it while saying a blessing at meal time. She contends that these are, without a doubt, Christian practices. In light of her concerns, Blair approaches the firm of Lemon, Gilmore & Ball LLP for legal advice.

You are an articling student at Lemon, Gilmore & Ball. The senior partners, Liz, Lorelei and Lucy, know of your expertise in constitutional law and ask for your opinion on three issues. They are

very specific in their instructions and remind you to address only the issue raised and to support your claims with reference to authorities.

Question 1(a) (16 marks; suggested time 48 minutes)

Does the *Charter* apply to the JJP Centre such that Blair can challenge the Centre's practice of displaying and acknowledging the crucifix?

Question 1(b) (16 marks; suggested time 48 minutes)

Blair believes that the JJP Centre's practice of displaying and acknowledging a crucifix while saying a blessing is a breach of section 2(a) of the *Canadian Charter of Rights and Freedoms*. Is Blair correct? Why or why not?

*** For the purposes of this question, the partners instruct you: **(a)** to assume that the *Charter* applies to the JJP Centre, and **(b)** not to address matters related to section 1 of the *Charter*.

Question 1(c) (16 marks; suggested time 48 minutes)

Blair believes the Food Policy is also a breach of section 2(a) because of its religious purpose that cannot be justified under section 1 of the *Charter*. The partners agree with Blair that the Food Policy amounts to a breach of the *Charter*. They ask you whether the Policy would be upheld as constitutional under section 1 of the *Charter*.

*** For the purposes of this question, the partners instruct you to assume that the *Charter* applies to the JJP Centre.

PART II – TRUE or FALSE

(2 x 6 = total 12 marks; suggested time 36 minutes)

Please answer **ONE (1) question from Group A AND ONE (1) question from Group B**. For each question, please indicate whether the given statement is true or false (1 mark) and then justify your answer (5 marks). Please clearly identify which question you are answering and support your response with references to authorities and/or examples, where appropriate. If you answer more than one question in each group, only your first response in each Group will be marked.

Note: this question paper will **NOT** be given to the examiner. Write all of your answers on computer or in an exam booklet.

GROUP A

- A1. TRUE or FALSE:** If a law contravenes section 7 of the *Canadian Charter of Rights and Freedoms* because it limits the claimant's right to life and is overbroad, the law cannot then be demonstrably justifiable under section 1.

- A2. TRUE or FALSE:** Given that ‘life, liberty and security of the person’ are concerned with individual freedom and given that the principles of fundamental justice only protect procedural rights, section 7 of the *Canadian Charter of Rights and Freedoms* can only be used to protect an individual’s physical well-being from state interference. Psychological matters and subjective beliefs about the quality of one’s life do not fall within the scope of section 7.

GROUP B

- B1. TRUE or FALSE:** Given the high threshold that must be met in order to establish that a law is in breach of section 2(b) of the *Canadian Charter of Rights and Freedoms*, it is very rare for such a breach to be found to be reasonable and justifiable under section 1.
- B2. TRUE or FALSE:** The types of expression protected by section 2(b) of the *Canadian Charter of Rights and Freedoms* include physical conduct and silence, as long as that conduct and silence are not of a purely economic or corporate character.

– END OF EXAMINATION –

IMPORTANT!

**Write your 4-DIGIT EXAM NUMBER on the first page and
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